

Defense counsel requested a continuance to May 6, Plaintiff's counsel provided until April 15 and Defendant served unverified responses on April 15. Defense counsel did not provide an explanation for not having the verification prior to service, other than she forgot to follow up with her client because other matters needed immediate attention. However, that does not excuse failing to respond timely. Sanctions are warranted. However, Plaintiff's request for \$2,565 is too much for this straightforward motion. Reduced to \$960 (2 hours x \$400 + \$60 filing fee) payable within 30 days of this order becoming final to Plaintiff by Defendant and Defense counsel jointly.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2502741	RAMIREZ VS GENERAL MOTORS, LLC	MOTION FOR ATTORNEYS FEES BY KEVIN RAMIREZ

Tentative Ruling: Granted.

Attorney fees and costs are granted in reduced, but reasonable amount each. Payable by Defendant to Plaintiff within 30 days of this order becoming final.

Moving party to provide notice pursuant to CCP 1019.5

Plaintiff Kevin Ramirez filed this Song-Beverly action regarding a 2023 Chevy Silverado with various defects. The complaint, filed 4/11/25, asserts: (1) breach of the implied warranty of merchantability; (2) breach of express warranty; (3) failure to promptly repurchase product; (4) failure to commence reasonable repairs within a reasonable time and complete them within 30 days. On 12/4/25, Plaintiff filed a notice of settlement of the case.

Plaintiff moves for attorney fees of \$17,375 and costs of \$1,451.40. He points out that he received a settlement of \$91,0000 plus fees and costs. He contends the hourly rate (\$625) is reasonable and counsel spent 24.8 hours plus 3 hours to draft the reply and attend the hearing.

In opposition, Defendant contends that AB 1755 streamlined this case as it was resolved in 8 months, and the lodestar is excessive. There was little activity other than serving initial disclosures and engaging in mediation. Defendant challenges specific entries and contends that 11.4 hours is reasonable. Defendant also contends the hourly rate is excessive and a more reasonable rate is \$550. It also argues that the costs are excessive and challenges them.

In reply, Plaintiff argues that the hourly rate and hours spent are reasonable.

Song Beverly Attorney Fees

Under Civil Code § 1794(d) (Song-Beverly Act), "[i]f the buyer prevails in an action under this section, the buyer shall be allowed by the court as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." Here, the parties apparently settled with the court to decide fees.

At issue in this motion is the reasonableness of Plaintiff's request. The matter of reasonableness of a party's attorney's fees is within the sound discretion of the trial judge. (*Bruckman v. Parliament Escrow Co.* (1989) 190 Cal.App.3d 1051, 1062.) Courts generally consider several factors in determining the reasonableness of a party's attorney's fees. These include "the nature of the litigation, the difficulty of the litigation, the attention given to the issues, the success of the attorney's efforts, and time consumed. [Citation omitted.]" (*PLCM Group, Inc. v. Drexler* (1999) 72 Cal.App.4th 693, 708.) Although a fee request ordinarily should be documented in great detail, the court is entitled to make its own evaluation of the reasonable worth of the work done in light of the nature of the case and the credibility of counsel's declaration, unsubstantiated by time records and billing statements. (See *Weber v. Langholz* (1995) 39 Cal.App.4th 1578, 1587; see also *Bernardi v. County of Monterey* (2008) 167 Cal.App.4th 1379, 1394.) Specifically in exercising its discretion, the Court may consider all of the facts and the entire procedural history of the case in setting the amount of a reasonable attorney's fee award. (*Bernardi, supra*, 167 Cal.App.4th 1379, 1394.)

Lodestar is the objective starting point to determine if attorney's fees are reasonable. (*Nichols v. City of Taft* (2007) 155 Cal.App.4th 1233, 1242.) Lodestar is calculated by assessing the reasonable rate for comparable services in the local community, multiplied by the reasonable number of hours spent on the case. (*Id.*) Lodestar requires the court to determine what a reasonable rate and number of hours expended. (*Concepcion v. Amscan Holdings, Inc.* (2014) 223 Cal.App.4th 1309, 1320.)

First, based on the familiarity of this Court's experience with similar motions in this area of law and the facts of this case, the hourly rate of \$650.00 is excessive. The court will grant attorney fee of \$550.00 an hour.

Second, the hours seem inflated for a straightforward lemon law case. The court will reduce as follows:

- 1.2 hours drafting a standard lemon law complaint is excessive. A more reasonable amount is .5.
- 3.2 hours preparing initial disclosures is excessive. A more reasonable amount is 2.0 hours.
- There seems to be clerical/administrative work done by counsel. While the court recognizes that counsel is a solo practitioner, that does not allow him to bill for these tasks. The court declines to award the entries for 5/2/25 [.2]; 7/7/25 [.5]; 12/5/25 [.1], 1/9/26 [.1], for a reduction of .9 hours.

Thus, the court awards a total of 25 hours for a total of \$13,750.00.

Costs

As for costs, jury fees are reasonably incurred. Plaintiff concedes that the mediation covered two cases, and agrees to reduce the mediation fees by \$300. Thus, the court awards costs of \$1,151.40.